

Dens — Theologia ad usum Seminariorum, Tom. II (Mechelen 1829)

Latin–English parallel text: De Virtute Fidei N. 14 (printed 283–287), De Ecclesia N. 92–93 (printed 437–438) and N. 97 (printed 448–450)

Latin	English
BLOCK A — De Virtute Fidei, N. 14 (printed 283–287)	BLOCK A — De Virtute Fidei, N. 14 (printed 283–287)
<i>An conclusio syllogistica, quæ legitimè deducitur ex duabus præmissis de fide, vel ex una præmissa de fide et altera naturaliter cognita, est de fide?</i>	<i>Is a syllogistic conclusion, which is legitimately deduced from two premises of faith, or from one premise of faith and another naturally known, of faith?</i>
R. 1.o Ex jam dictis patet, quòd si consideretur merè ut illata per rationem et consequentiam legitimam, eatenùs fide divinâ non credatur; sed erit assensus scientiæ theologicæ.	R. 1. From what has already been said it is clear that, if it be considered merely as inferred through reason and a legitimate consequence, to that extent it is not believed by divine faith; but it will be an assent of theological science.
R. 2.o Potest tamen talis conclusio vel propositio dici de fide, in quantum consideratur ut contenta in præmissa de fide; adeò ut assensus præbeatur, non vi consequentiæ, sed quia conclusio in præmissa est contenta, adeòque revelata: quamquàm[1], ut dicit Steyaert, fides talis propriè et immediatè non tendat in conclusionem hanc in individuo, sed potiùs cadat in præmissam quæ ipsam continet.	R. 2. Such a conclusion or proposition can nevertheless be called of faith, insofar as it is considered as contained in the premise of faith; so that assent is given, not by force of the consequence, but because the conclusion is contained in the premise, and thus revealed: although[1], as Steyaert says, such faith does not properly and immediately tend toward this conclusion taken singly, but rather falls upon the premise which contains it.
NOTA. Potest conclusio contineri in præmissa <i>formaliter</i> , vel solùm <i>virtualiter</i> .	NOTE. A conclusion can be contained in the premise <i>formally</i> , or only <i>virtually</i> .
Dicitur contineri formaliter, quæ continetur secundùm proprium ejus significatum; ita ut sit quid idem cum ea, vel pars ejus, vel proprietas inseparabilis: v. g. si dicam: <i>Christus est homo: ergo est animal rationale; ergo habet animam rationalem; ergo est visibilis</i> .	That is said to be contained formally which is contained according to the premise’s proper meaning; so that it is something identical with it, or a part of it, or an inseparable property: e.g. if I say: <i>Christ is man: therefore he is a rational animal; therefore he has a rational soul; therefore he is visible</i> .
Dicitur contineri virtualiter, quando talem habet connexionem cum illa, ut conclusionem negans censeatur negare præmissam: ut infrà in exemplo canis Tobisë.	That is said to be contained virtually, when it has such a connection with the premise that one who denies the conclusion is reckoned to deny the premise: as below in the example of Tobias’s dog.
Si quædam conclusio formaliter contineatur in præmissa de fide, erit directè de fide: Deus enim, in quo non est cognitio confusa, omnia singularia, sub universali contenta, distinctè cognoscit, et	If some conclusion is contained formally in a premise of faith, it will be directly of faith: for God, in whom there is no confused knowledge, knows distinctly all the singulars contained under the universal, and where he

Latin

ubi hanc revelat, loquitur de omnibus quæ formaliter in ea continentur, et pro omnibus interponit suam auctoritatem; ergo ubi constat certitudine, cui falsum non subest, quòd aliquid contineatur sub universali revelato, constat illud particulariter esse revelatum, et consequenter ad fidem pertinere.

Ita hic syllogismus: Omnes homines peccaverunt: atqui Joannes est homo; ergo Joannes peccavit: conclusio hæc, Joannes peccavit, formaliter continetur in majori præmissa, Omnes homines peccaverunt, tanquàm pars totius expressè revelati ad Rom. cap. 3. *Ÿ. 23. Omnes enim peccaverunt, et egent gloria Dei*; et ideò potest hæc, Joannes peccavit, dici esse directè de fide.

Hinc est, quòd multa ab omnibus supponantur de fide, quæ non sunt explicitè revelata. Sic quilibet fidelis credit se à Deo creatum, contraxisse peccatum originale, resurrecturum etc., quæ Deus non de singulis in particulari, sed de omnibus generatim revelavit. Sic etiam, quia de fide est omnem infantem debitè baptizatum esse justificatum, si certus sum me hunc infantem ritè baptizasse, fide divina credere possum eum esse justificatum. Idem quoque foret si Deus alicui sufficienter revelaret omnes Belgii urbes hoc anno esse evertendas; posset is fide divina credere Bruxellas hoc anno esse evertendas.

Si autem conclusio tantùm virtualiter contineatur in præmissa revelata, erit indirectè et consecutivè de fide.

Sic in hoc argumento: *Canis Tobiae blandimento caudæ suæ gaudebat; ergo canis Tobiae habebat caudam*; consequens tantùm virtualiter, non formaliter, continetur in antecedente, Tobiae cap. 11. *Ÿ. 9., tunc præcurrit canis, qui simul fuerat in via: et quasi nuntius adveniens, blandimento suæ caudæ gaudebat*, revelato: quia continetur tantùm ratione connexionis, quæ est inter significata utriusque propositionis. Atque hinc propositio hæc, *Canis Tobiae habebat caudam*, non est de fide directè, sed indirectè, in quantum scilicet, eâ negatâ, sequitur, falsum esse, quòd Tobiae cap. 11. *Ÿ. 9.* habetur. Et ita, si quis videns eam sequelam, quòd ex eo quòd negetur canem Tobiae habuisse caudam, sequatur in Scriptura falsum contineri, et nihilominus pertinaciter id negaret, foret hæreticus: non ideò præcisè, quia id negat; sed quia convincitur pertinaciter sustinere, quòd in

English

reveals this universal, he speaks of all the things which are formally contained in it, and for all of them interposes his authority; therefore where it is established with a certitude beneath which no falsehood lies, that something is contained under the revealed universal, it is established that this thing is revealed in particular, and consequently pertains to faith.

Thus this syllogism: All men have sinned: but John is a man; therefore John has sinned: this conclusion, John has sinned, is contained formally in the major premise, All men have sinned, as a part of the whole expressly revealed at Rom. ch. 3 *Ÿ. 23, For all have sinned, and do need the glory of God*; and therefore this proposition, John has sinned, can be said to be directly of faith.

Hence it is that many things are supposed by all to be of faith which are not explicitly revealed. Thus each of the faithful believes that he was created by God, that he contracted original sin, that he will rise again, and so forth, things which God revealed not of individuals in particular, but of all in general. So too, since it is of faith that every duly baptized infant has been justified, if I am certain that I have rightly baptized this infant, I can believe by divine faith that he has been justified. The same would hold also if God were to reveal sufficiently to someone that all the cities of Belgium were to be overthrown this year; he could believe by divine faith that Brussels was to be overthrown this year.

If, however, the conclusion is contained only virtually in the revealed premise, it will be indirectly and consecutively of faith.

Thus in this argument: *Tobias's dog shewed his joy by his fawning and wagging his tail; therefore Tobias's dog had a tail*; the consequent is contained in the antecedent only virtually, not formally, the antecedent being revealed at Tob. ch. 11 *Ÿ. 9, Then the dog, which had been with them in the way, ran before, and coming as if he had brought the news, shewed his joy by his fawning and wagging his tail*: because it is contained only by reason of the connection which holds between the things signified by the two propositions. And hence this proposition, *Tobias's dog had a tail*, is not of faith directly, but indirectly, namely insofar as, once it is denied, it follows that what is had at Tob. ch. 11 *Ÿ. 9* is false. And so, if anyone, seeing that consequence, namely that from denying that Tobias's dog had a tail it follows that a falsehood is contained in Scripture, should nevertheless pertinaciously deny it, he would be a heretic: not precisely because he denies that, but because he is convicted of pertinaciously maintaining that a

Latin

Scriptura falsum contineatur. Aliud foret, si hoc quis negaret, non videns quòd ex eo aliquid sequatur contrarium fidei.

Hinc collige, quomodò dici possit, illum esse hæreticum, qui sustinet aliquam propositionem, concernentem mores tantùm, non fidem, ab Ecclesia condemnata: nimirùm licèt talis non sit hæreticus ideò præcisè, quia sustinet aliquam propositionem erroneam in moribus; tamen cùm inde sequatur, quòd Ecclesia in condemnando talem propositionem erraverit, ideò sustinens illam propositionem convincitur esse hæreticus; cùm de fide sit, quòd Ecclesia errare non possit in fide et moribus. His conformia scribit S. Th. 1. p. q. 32. a. 4., et in cap. 11. Epist. 1. ad Cor. Vide etiam infrà N. 54.

Estne de fide, modernum Pontificem Pium VIII. esse successorem legitimum S. Petri et Christi Vicarium? cùm inferatur ex his præmissis: Omnis Pontifex legitime electus, est verus successor S. Petri et Christi Vicarius: atqui modernus Pontifex Pius VIII. est legitime electus; ergo est verus successor S. Petri, et Christi Vicarius.

R. Plausibiliter sustinetur, hanc propositionem, Pius VIII. est verus successor S. Petri et Christi Vicarius, esse de fide; quia continetur formaliter in majori præmissa tanquàm pars in toto, scilicet in hac: Omnis Pontifex legitime electus est verus successor S. Petri et Christi Vicarius; quæ est de fide juxta omnes. Quare Martinus V. in bulla contra errores Wiclefi et Joannis Hus, edita in concilio Constantiensi, suspectum de hæresi inter alia interrogari jubet, « utrùm credat, quòd Papa canonicè electus, qui pro tempore fuerit, ejus nomine expresso, sit successor Beati Petri, habens supremam auctoritatem in Ecclesia Dei. » Coll. Conc. Hard. Tom. 8. col. 915.

Obj. Quamvis sit de fide, omnem infantem legitime baptizatum esse justificatum, non est tamen de fide, quòd hic infans sit justificatus, si non certò constet, quòd sit legitime baptizatus: atqui etiam non certò constat, quòd modernus Pontifex sit legitime electus; ergo etc.

R. Neg. min.: ratio disparitatis est, quòd, an puer sit legitime baptizatus, dependeat à facto hominis privati; de quo certam sæpè

English

falsehood is contained in Scripture. It would be otherwise if someone were to deny this without seeing that anything contrary to faith follows from it.

Hence gather how one can be said to be a heretic who maintains some proposition condemned by the Church which concerns morals only, not faith: namely, although such a one is not a heretic precisely because he maintains some proposition erroneous in morals, nevertheless, since it follows from this that the Church would have erred in condemning such a proposition, therefore the one maintaining that proposition is convicted of being a heretic; since it is of faith that the Church cannot err in faith and morals. St. Thomas writes things conformable to this, 1 p. q. 32 a. 4, and on ch. 11 of the First Epistle to the Corinthians. See also below, N. 54.

Is it of faith that the modern Pontiff Pius VIII is the legitimate successor of St. Peter and Vicar of Christ? since it is inferred from these premises: Every Pontiff legitimately elected is the true successor of St. Peter and Vicar of Christ: but the modern Pontiff Pius VIII is legitimately elected; therefore he is the true successor of St. Peter, and Vicar of Christ.

R. It is plausibly maintained that this proposition, Pius VIII is the true successor of St. Peter and Vicar of Christ, is of faith; because it is contained formally in the major premise as a part in the whole, namely in this: Every Pontiff legitimately elected is the true successor of St. Peter and Vicar of Christ; which is of faith according to all. Wherefore Martin V, in the bull against the errors of Wyclif and John Hus, published in the Council of Constance, orders that one suspected of heresy be asked, among other things, « whether he believes that the Pope canonically elected, whoever he shall be for the time being, his name being expressed, is the successor of Blessed Peter, having supreme authority in the Church of God. » Coll. Conc. Hard. Tom. 8, col. 915.

Obj. Although it is of faith that every legitimately baptized infant has been justified, it is nevertheless not of faith that this infant has been justified, if it is not certainly established that he has been legitimately baptized: but neither is it certainly established that the modern Pontiff has been legitimately elected; therefore etc.

R. I deny the minor: the reason for the disparity is that whether a child has been legitimately baptized depends on the act of a private man, of which we

Latin

non habemus notitiam: verùm legitima Pontificis electio innititur propositioni universalis Ecclesiæ, modernum Pontificem ut legitimum agnoscentis; quâ in re errare non potest, ne alioquin pro capite agnoscat eum qui non est, idque sine remedio.

Notandum tamen, non esse de fide catholica, Pontificem modernum esse S. Petri successorem et Christi Vicarium: nam id non est sufficienter toti Ecclesiæ propositum cum obligatione credendi. Ex quo patet, posse dari schisma, sive separationem à subjectione Pontificis, sine hæresi.

Collige quandonam negans revelatum implicitè dicendus sit hæreticus, quandonam non. Si Ecclesia ipsa deductionem faciat et proponat, propositio est de fide catholica, et eam negans hæreticus est; si verò Ecclesia deductionem non faciat, hæreticus non erit qui sequelam non videt: qui autem eam clarè videt, conformiter ad dicta, hæreticus erit in foro Dei, non in foro Ecclesiæ. Hæc etiam ratio est ob quam Ecclesia in proscriptione ejusmodi propositionum, non eas damnat ut hæreticas, sed solùm ut erroneas, vel hæresi proximas. Pro quo vide infra N. 55.

BLOCK B — De Ecclesia, N. 92–93 (printed 437–438)

Quis est iste successor Petri?

R. De fide est, quòd sit Pontifex Romanus. Probatur ex constanti Conciliorum generalium et Ecclesiæ definitione, ac SS. PP. doctrina; ut propterea dicat S. Augustinus, quòd successio illa ab ipsa sede Petri continua ipsum retineat in Ecclesia Catholica.

Hæc successio usque hodiè continuatur in serie 255 Pontificum.

N. 93. DE POTESTATE SUMMI PONTIFICIS.

A quo summus Pontifex legitime electus accipit potestatem suam et jurisdictionem?

R. Immediatè eam accipit à Christo tanquàm ejus Vicarius, prout eam Petrus accepit.

English

often have no certain knowledge: whereas the legitimate election of the Pontiff rests upon the proposition of the universal Church, acknowledging the modern Pontiff as legitimate; in which matter it cannot err, lest otherwise it acknowledge as head one who is not head, and that without remedy.

It is to be noted, however, that it is not of catholic faith that the modern Pontiff is the successor of St. Peter and Vicar of Christ: for that has not been sufficiently proposed to the whole Church with the obligation of believing. From which it is clear that there can be schism, that is, separation from subjection to the Pontiff, without heresy.

Gather when one who denies what is implicitly revealed is to be called a heretic, and when not. If the Church herself makes the deduction and proposes it, the proposition is of catholic faith, and one who denies it is a heretic; but if the Church does not make the deduction, he who does not see the consequence will not be a heretic: he, however, who sees it clearly will, conformably to what has been said, be a heretic in the forum of God, not in the forum of the Church. This is also the reason why the Church, in proscribing propositions of this kind, does not condemn them as heretical, but only as erroneous, or proximate to heresy. On which see below, N. 55.

BLOCK B — De Ecclesia, N. 92–93 (printed 437–438)

Who is this successor of Peter?

R. It is of faith that he is the Roman Pontiff. This is proved from the constant definition of the general Councils and of the Church, and from the doctrine of the holy Fathers; so that St. Augustine says on that account that that succession, continuous from the very see of Peter, retains him in the Catholic Church.

This succession is continued down to the present day in a series of 255 Pontiffs.

N. 93. ON THE POWER OF THE SUPREME PONTIFF.

From whom does the supreme Pontiff, legitimately elected, receive his power and jurisdiction?

R. He receives it immediately from Christ as his Vicar, in the manner in which Peter received it.

Latin

Nec obstat Papam eligi à Cardinalibus: nam illorum electio est tantum conditio sine qua non, quâ positâ, potestatem et jurisdictionem immediatè accipit à Christo.

BLOCK C — De Ecclesia, N. 97 (printed 448–450)

N. 97. AN PONTIFEX, SALTEM UT PRIVATA PERSONA POSSIT ESSE HÆRETICUS?

Resp. Etsi id præced. conclusioni non obsesset, ut dictum est, videtur tamen sententia negativa probabilior, ita ut privilegium Petri, de quo Lucæ cap. 22. *Ÿ. 32. Rogavi pro te, ut non deficiat fides tua*, etiam transeat ad Petri successores: idque consentaneum est divinæ Providentiæ, ut qui doctor est fidei, ipse à fide non deficiat.

Probatur etiam ex eo, quòd de nullo Pontifice hactenùs probari potuerit, fuisse formalem hæreticum: idque S. Aug. Epist. 165. de Pontificibus ad sua usque tempora testatur.

Obj. I. Marcellinus sub Diocletiano thus Idolis adolevit; ergo etc.

R. S. Aug., et post ipsum Baronius, Bellarminus, Christianus Lupus etc. dicunt, lapsum Marcellini esse figmentum à Donatistis confictum: Binius, Schelstratius, aliique, qui lapsum admittunt, dicunt Marcellinum idolis metu mortis thurificasse, ideòque contra fidei professionem peccasse, sed fidem interiùs non amisisse.

Obj. II. Liberius Papa subscripsit formulæ fidei Syrmienti ab Arianis confectæ, ac condemnationi Athanasii, qui veram fidem tuebatur; ergo fuit hæreticus.

R. Neg. cons.: verum quidem est Liberium à Constantio ob fidem catholicam in exilium missum, tandem calamitatibus et tædio victum, cum Arianis communicasse, ac subscripsisse damnationi Athanasii, non ob ejus fidem, sed propter crimina ab Arianis falsò objecta.

Deindè subscripsit formulæ Syrmienti, quæ, quamvis in ea subiceretur vox *consubstantialis*, nil contrarium fidei continebat, tametsi fidem haud sufficienter explicaret: ex quibus proindè

English

Nor does it stand in the way that the Pope is elected by the Cardinals: for their election is only a *conditio sine qua non*, and once it is posited, he receives power and jurisdiction immediately from Christ.

BLOCK C — De Ecclesia, N. 97 (printed 448–450)

N. 97. CAN THE PONTIFF, AT LEAST AS A PRIVATE PERSON, BE A HERETIC?

Resp. Although this would not stand in the way of the preceding conclusion, as has been said, the negative opinion is more probable, so that the privilege of Peter, concerning which Luke ch. 22 *Ÿ. 32, I have prayed for thee, that thy faith fail not*, passes also to the successors of Peter: and this is consonant with divine Providence, that he who is the teacher of faith should himself not fail in faith.

It is proved also from this, that of no Pontiff hitherto has it been able to be proved that he was a formal heretic: and St. Augustine attests this in Epist. 165 concerning the Pontiffs down to his own times.

Obj. I. Marcellinus under Diocletian burned incense to idols; therefore etc.

R. St. Augustine, and after him Baronius, Bellarmine, Christian Lupus and others, say that the lapse of Marcellinus is a fiction invented by the Donatists: Binius, Schelstrate, and others, who admit the lapse, say that Marcellinus offered incense to idols from fear of death, and therefore sinned against the profession of faith, but did not inwardly lose the faith.

Obj. II. Pope Liberius subscribed to the formula of faith of Sirmium drawn up by the Arians, and to the condemnation of Athanasius, who was defending the true faith; therefore he was a heretic.

R. I deny the consequence: it is indeed true that Liberius was sent into exile by Constantius for the catholic faith, and at last, overcome by calamities and weariness, communicated with the Arians, and subscribed to the condemnation of Athanasius, not on account of his faith, but on account of crimes falsely alleged against him by the Arians.

Then he subscribed to the formula of Sirmium, which, although the word *consubstantial* was passed over in silence in it, contained nothing contrary to faith, even though it did not explain the faith sufficiently: from which,

Latin

probari nequit, Liberium fuisse hæreticum, quamvis in modo agendi à peccato non excusetur.

Non desunt interim, qui Liberii lapsum meram habent fabulam ab Arianis sparsam, à nonnullis catholicis, ut moris est creditam. Vide Collet in tr. de SS. Trin. q. 4. a. 3. q. 2.

Obj. III. Honorius I fuit Monothelita; ergo etc.

Probatur ant.: quia in Epistola ad Sergium docet, in Christo unam, non duas esse voluntates.

R. Neg. ant.: ad probationem dicitur, quòd in istis Epistolis non negaverit in Christo duas voluntates, divinam, et humanam; sed tantùm neget duas humanas voluntates pugnantes, unam carnis, alteram spiritûs; quales in nobis experimur, quibus ex vitiata origine caro concupiscit adversùs spiritum: præcepitque, ut à vocabulis unius vel duarum voluntatum abstinereetur, ne ex diverso verborum intellectu oriretur schisma.

Instabis: Synodus 6. damnavit Honorium tanquàm hæreticum; ergo etc.

R. Sylvius cum quibusdam vult, acta istius synodi esse corrupta, et nomen Honorii substitutum loco Theodori: sed hoc commentum doctè refutat Thomassinus dissertatione 20. in Syn. 6.

Alii dicunt, synodum 6. condemnando Honorium errasse, scilicet errore facti merè personâlis[2], non circa sensum litteralem textuum dogmaticorum: nempè, aiunt, iudicium synodi fuit merè criminale, non dogmaticum: principaliter enim quærebat de persona Honorii; undè Epistolæ ejus primariò discussæ non sunt, ut inquireretur de dogmate, sed tantùm ut persona judicaretur; in quo iudicio Ecclesiam errare posse admissum est N.o 84.

Alii dicunt, Honorium in synodo 6. damnatum esse ut hæresis fautorem, non verò ut hæreticum: huic sententiæ favet, quòd Leo II, qui synodum confirmavit, variis locis solùm arguat Honorii negligentiam et imprudentiam, « quâ immaculatam fidem maculari permisit »: item quòd Constantinus Pogonatus imperator,

English

therefore, it cannot be proved that Liberius was a heretic, although in his manner of acting he is not excused from sin.

Meanwhile there are not lacking those who hold the lapse of Liberius to be a mere fable spread abroad by the Arians and believed, as is the custom, by some catholics. See Collet in the treatise on the Most Holy Trinity, q. 4 a. 3 q. 2.

Obj. III. Honorius I was a Monothelite; therefore etc.

The antecedent is proved: because in his Epistle to Sergius he teaches that in Christ there is one will, not two.

R. I deny the antecedent: to the proof it is said that in those Epistles he did not deny two wills in Christ, the divine and the human, but only denies two conflicting human wills, one of the flesh, the other of the spirit; such wills as we experience in ourselves, in whom, from our corrupted origin, the flesh lusts against the spirit: and he directed that the expressions of one will or of two wills be abstained from, lest from a diverse understanding of the words a schism should arise.

You will press: The Sixth Synod condemned Honorius as a heretic; therefore etc.

R. Sylvius, with certain others, holds that the acts of that synod are corrupted, and the name of Honorius substituted in place of Theodore: but Thomassin learnedly refutes this invention in dissertation 20 on the Sixth Synod.

Others say that the Sixth Synod erred in condemning Honorius, namely by a merely personal[2] error of fact, not concerning the literal sense of dogmatic texts: for, they say, the judgment of the synod was merely criminal, not dogmatic: for the question raised was principally about the person of Honorius; whence his Epistles were not discussed primarily so that inquiry might be made about doctrine, but only so that the person might be judged; and in a judgment of this kind it was admitted at N. 84 that the Church can err.

Others say that Honorius was condemned in the Sixth Synod as a favourer of heresy, but not as a heretic: this opinion is favoured by the fact that Leo II, who confirmed the synod, in various places charges Honorius only with negligence and imprudence, « by which he permitted the immaculate faith to be stained »: likewise by the fact that the emperor Constantine Pogonatus,

Latin

qui isti concilio interfuit, condemnet Honorium tanquàm hæresis fautorem, concursorem et confirmatorem. Verum quidem est, quòd dicatur Honorio Hæretico Anathema; sed Patres inter hæreticos et fautores hæreseos non videntur distinxisse: saltem ipsa verba Patrum conniventiam Honorii potiùs, quàm apertam hæresis professionem accusant.

Obj. IV. Dist. 40. Can. SI PAPA, dicitur Papa cunctos judicare, à nemine judicandus, nisi deprehendatur à fide devius; ergo potest esse hæreticus formalis.

R. Neg. cons.: tantùm enim dicitur, quid fieri possit, casu quo Pontifex à fide deficeret: putamus autem casum hunc nunquàm evenisse, nec eventurum.

English

who was present at that council, condemns Honorius as a favourer, abettor and confirmer of heresy. It is indeed true that the words, Anathema to Honorius the heretic, are pronounced; but the Fathers do not seem to have distinguished between heretics and favourers of heresy: at least the very words of the Fathers charge Honorius rather with connivance than with an open profession of heresy.

Obj. IV. At Dist. 40. Can. SI PAPA it is said that the Pope judges all and is to be judged by none, unless he be found to have strayed from the faith; therefore he can be a formal heretic.

R. I deny the consequence: for it is only said what could be done in the case in which the Pontiff should fail in faith: but we think that this case has never happened, nor will happen.